Transaction Ref: FAM2065195 for file NSC3206/2023 - Cooke S C & H A
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Affidavit – Non-Filing of Family Dispute Resolution Certificate

Family Law Act 1975 – SECTION **60I(9)**
Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – RULE **4.02**

Please type or print clearly and mark [**X**] all boxes that apply. Attach extra pages if you need more space to answer any questions.

Filed in:

☒ Federal Circuit and Family Court of Australia

☐ Family Court of Western Australia

☐ Other (specify) _____

Filed on behalf of:
Full name: Stephen Christopher Cooke

Client ID _____

File number _____

Filed at NEWCASTLE

Filed on

Court location

Court date _____

PLEASE READ BEFORE COMPLETING THIS AFFIDAVIT

If you are also applying for interlocutory orders; that is, interim or procedural orders which will happen until a Final Hearing can take place, then you do not need to complete this affidavit.

As you will need to complete an affidavit in support of the interlocutory orders you seek in your *Initiating Application (Family Law),* you should also set out the factual basis for seeking an exemption from filing a certificate from a family dispute resolution practitioner in that affidavit.

You do not need to complete this affidavit if there is a consent order or if you are applying for orders in response to an application.

PLEASE COMPLETE:
Name of person affirming this affidavit (SEE PART B)
Stephen Christopher Cooke

Date of affirming 5/12/2023
____/____/2023

Part A About the parties

APPLICANT 1	RESPONDENT 1
Family name as used now	Family name as used now
Cooke	Cooke
Given names	Given names
Stephen Christopher	Heather Anne

FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA
AUSTRALIA

What is the contact address (address for service) in Australia for the party filing this affidavit?

You do not have to give your residential address. You may give another address at which you are satisfied that you will receive documents. If you give a lawyer's address, include the name of the law firm. You must also give an email address.

Clarity Lawyers
T & G Building, Level 4, 45 Hunter Street, Newcastle State NSW Postcode 2300
Phone 0240235553
DX
Lawyer's code CLA7584701
Email samantha@claritylawyers.com.au

Part B About you (the deponent)

What is your family name used now?	Your given names?
Cooke	Stephen Cooke

Gender

☒ Male ☐ Female ☐ X

Usual occupation

Parent and Homemaker

What is your address?

You do not have to give your residential address. You may give another address at which you are satisfied that you will receive documents.

213 Morgan Street
Merewether
State NSW Postcode 2291

DocuSigned by: Stephen Christopher Cooke
5F76EF5EF0A94EE...
Signature of person making this affidavit (deponent)

DocuSigned by: Prue Erin Garvin
282FFC688E2A48B...
Signature of witness

FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA

Part C Evidence

- Tick all the options which apply to your case. Remember you are affirming that these statements are true. Do not tick a sentence unless it is true.
- Where there is a space below a sentence providing for you to give further details, you **must** provide further information to support the statement. It is not sufficient to simply tick that particular sentence.
- Where further details are required, set out the facts divided into consecutively numbered paragraphs. Attach extra pages if you need more space. Please ensure that the pages are numbered. You and the witness to your affidavit must sign at the bottom of each additional page. Make sure that the page containing Part D is always the last page of this affidavit.

☒ I allege that there (tick all that apply to you)

☒ has been abuse of the child/children by one of the parties to the proceedings;

☒ would be a risk of abuse of the child/children if there were to be a delay in applying for the order;

☒ has been family violence by one of the parties to the proceedings;

☒ is a risk of family violence by one of the parties to the proceedings.

In support of my allegation, I provide the following information:

State briefly but clearly the facts you rely upon to support your allegation. You only need to provide sufficient information to satisfy the Court that there are reasonable grounds to believe what you are alleging above.

1. The Respondent has in the last few months hit one of the children across the mouth on two occasions.

2. the Respondent has unilaterally removed and withheld the children from the care of the Applicant, their primary care giver, and exposed them to conflict

3.

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DocuSigned by: Stephen Christopher Cooke
Signature of person making this affidavit (deponent)

DocuSigned by: Prue Erin Garvin
Signature of witness

☐ All the following apply in my case:

a) My application is made about a particular issue;

b) There is a Court order under Part VII of the *Family Law Act 1975* which was made within 12 months of the date I am seeking to file my current application for final orders;

c) My application is made in relation to a contravention of a parenting order by another person;

d) The person contravening the order has behaved in a way that shows a serious disregard for his or her obligations under the Order.

In support of this allegation, I provide the following information:

State briefly but clearly the facts you rely upon to support your allegation. You only need to provide sufficient information to satisfy the Court that there are reasonable grounds to believe what you are alleging above.

1.

2.

☒ My application is made in circumstances of urgency.

In support of my allegation, I provide the following information:

State briefly but clearly the facts you rely upon to support your allegation. You only need to provide sufficient information to satisfy the Court that there are reasonable grounds to believe what you are alleging above.

1. I have been the primary caregiver for the children since their births.
2. The Respondent has removed and withheld the children.
3. I do not know where the children are residing.
4. I do not think it is in the best interests of the children to be exposed to further conflict by my attempting to simply collect them from school as I fear that the Respondent may make a scene in front of the children which would be detrimental to them and will simply take them again.

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DocuSigned by: Stephen Christopher Cooke
Signature of person making this affidavit (deponent)

DocuSigned by: Prue Erin Garvin
Signature of witness

☐ I or one of the other parties I have named in the proceedings is unable to participate effectively in family dispute resolution.

In support of my allegation, I provide the following information:

State briefly but clearly the facts you rely upon to support your allegation. You only need to provide sufficient information to satisfy the Court that there are reasonable grounds to believe what you are alleging above.

1.

2.

☐ An application has been made to the Court for another order in proceedings in which a certificate has been filed.

In support of my allegation, I provide the following information:

State briefly but clearly the facts you rely upon to support your allegation. You only need to provide sufficient information to satisfy the Court that there are reasonable grounds to believe what you are alleging above.

1.

2.

DocuSigned by: Stephen Christopher Cooke
Signature of person making this affidavit (deponent)

DocuSigned by: Prue Erin Garvin
Signature of witness

Part D Signature

I swear* /affirm* the contents of this affidavit are true

DocuSigned by:
Stephen Christopher Cooke
F0762E05E0A94BE...
Signature of Deponent

Merewether
Place

5/12/2023
Date /12/2023

DocuSigned by:
Prue Erin Garvin
283EE038EF0448D...
Before me (Signature of witness)

Prue Erin Garvin (JP 192672)
Full name of witness (please print)

☒ Justice of the Peace
☐ Notary public
☐ Lawyer
☐ Authorised Staff Member of the Court

* delete whichever is inapplicable

This document was signed and witnessed over audio visual link in accordance with section 14G of the Electronic Transactions Act 2000.

This affidavit was prepared / settled by ☐ deponent/s ☒ lawyer

Samantha Jane Miller
CLA7584701
PRINT NAME AND LAWYER'S CODE

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AUSTRALIA

Approved by the Chief Executive Officer pursuant to Rule 4.02(1)(b) of the *Federal Circuit and Family Court of Australia (Family Law) Rules 2021* 0921V2